

Cross-Complainant Roger Boaz's Compliance with Settlement and Release Agreement is granted.

2. Roger Boaz shall pay the amount of \$2,400 in attorney's fees to Bryan Dove, which the court finds reasonable, and was necessitated by filing this Motion, no later than ten (10) days from the date of this motion pursuant to Cal. Code of Civ. Proc § 128.5.
3. The Court finds that the settlement agreement entered into by the Parties on October 9, 2025 is valid and enforceable pursuant to Cal. Code of Civ. Proc § 664.6.
4. The Confidential Settlement Agreement and Release executed by Boaz is valid and enforceable pursuant to Cal. Code of Civ. Proc. § 664.6.
5. Pursuant to Cal. Code of Civ. Proc. § 664.6(a), the court dismisses this case without prejudice and retains jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. The Court also retains jurisdiction of over the parties to enforce payment of outstanding sanctions.
6. All motions, including the motions calendared for May 6, 2026 and August 12, 2026 are vacated, as this case is dismissed.
7. Dove's counsel is ordered to prepare and e-file a proposed order and judgment conforming to the foregoing ruling no later than ten (10) days from the date of the hearing of this motion, attaching a copy of the tentative ruling.
8. Plaintiff's Counsel is ordered to prepare a proposed judgment conforming to this ruling no later than twenty (20) days from the date of this ruling.

7. 9:00 AM CASE NUMBER: C24-00146

CASE NAME: IFE RAMIREZ VS. ANNA HAYTER

***HEARING ON MOTION IN RE: APPLICATION FOR DETERMINATION OF GOOD FAITH SETTLEMENT
FILED BY: HERNANDEZ, GERONIMO**

TENTATIVE RULING:

Defendant Geronimo Hernandez's Motion for Good Faith Settlement Determination, filed on November 17, 2025, is unopposed and, after independent review by the Court, it is granted. The Court will execute the proposed order lodged on November 17, 2025. No appearance is required at the hearing on March 18, 2026.

8. 9:00 AM CASE NUMBER: C24-00633

CASE NAME: ELI HAZAN VS. VOLKSWAGEN GROUP OF AMERICA, INC.

**HEARING ON SUMMARY MOTION FILED BY DEFENDANT
FILED BY: VOLKSWAGEN GROUP OF AMERICA, INC.**

TENTATIVE RULING:

The Court continues this hearing, *sua sponte*, to April 8, 2026 at 9:00 a.m. in this Department 16. No further briefings are required. No appearances is required at the hearing on March 18, 2026.

9. 9:00 AM CASE NUMBER: C25-00261
CASE NAME: KIKI BROWS VS. RAMANUJAN GROUP LLC
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY:

TENTATIVE RULING:

Before the Court is a demurrer filed by defendant Ramanujan Group LLC, as successor in interest to Blackhawk Centralcal LLC (“Defendant”), which challenges the first amended complaint (“FAC”) filed by plaintiff Kiki Brows (“Plaintiff”).

For the reasons set forth below, the Court **SUSTAINS** Defendant’s demurrer to the first (breach of contract), second (fraud), and third (detrimental reliance) causes of action, with leave to amend. Plaintiff may file and serve a second amended complaint within 20 days of notice of entry of this order. (Code Civ. Proc., § 472b; California Rules of Court, rule 3.1320(g).)

Meet and Confer

The meet and confer requirement has been satisfied. (Kevin K. Dinh Decl. ISO Demurrer, ¶¶ 2-3; Code Civ. Proc., § 430.41.)

Background

Plaintiff and its prior landlord entered into a lease agreement around June 14, 2013. (FAC, ¶¶ 1, 7.) Later, the lease was extended so as to be valid until November 30, 2023, and again until November 30, 2024. (*Ibid.*) The lease had an option to renew, and Plaintiff exercised the renewal and was told that the renewal was granted. (*Id.*, at ¶ 8.) Relying on the confirmation of renewal, Plaintiff opted out of moving his business and allowed other opportunities to pass. (*Id.*, at ¶ 9.) Plaintiff made the required lease payment for annual minimum rent (\$19,468.20), which was accepted, but was unable to note that the lease was being renewed. (*Id.*, at ¶¶ 10-11.) Subsequently, Defendant refused to provide a signed renewal, and demanded a new term be added to the lease, which required Plaintiff to get permission from a competing tenant to be allowed to continue its business in the same business complex it had been in for over ten years. (*Id.*, at ¶¶ 12-14.) In addition, Plaintiff has contacted Defendant to obtain reimbursement for repairs and Defendant has not yet responded. (*Id.*, at ¶ 15.)

On January 29, 2025, Plaintiff filed the initial complaint in this matter. On August 14, 2025, Plaintiff filed the FAC, which asserts claims for breach of contract, fraud, and detrimental reliance. (Plaintiff’s First Amended Complaint, ¶¶ 1-32.) On August 4, 2025, Defendant filed an unlawful detainer action (Case No. N25-1537). On February 20, 2026, this Court denied a motion to consolidate the unlawful detainer action with the instant action.

Legal Standard

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “We also accept as true facts which may be inferred from those expressly alleged.” (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges “the sufficiency

of the allegations in a complaint as a matter of law,” not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (*Id.* at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a “court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice.” (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) “[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff.” (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

Analysis

First Cause of Action – Breach of Contract

Defendant argues that Plaintiff’s first cause of action for breach of contract fails because Plaintiff alleges a breach of a written contract but has neither attached the contract to the complaint nor set out the terms verbatim. (Demurrer MPA, p. 5:20-24.) Plaintiff argues that a claim for breach of written contract need not attach a copy of the contract to the complaint or recite its terms verbatim but can rather plead the legal effect rather than the precise language. (Opposition, p. 3:20-24.) Defendant counters that the ultimate facts and essential terms must still be pleaded, which Defendant argues is not the case with the current complaint. (Reply, p. 2:15-24.)

Plaintiff is correct to argue that one is not required to attach a copy of the contract to the complaint or set out the terms verbatim to support a breach of written contract claim, as it is sufficient to plead the legal effect of a written contract instead. (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199 [“In an action based on a written contract, a plaintiff may plead the legal effect of the contract rather than its precise language.”].) However, the Court agrees with Defendant and finds that Plaintiff has not properly pled the legal effect of the alleged written contract. Plaintiff alleges that the lease had an option to renew and that it exercised its right to renewal, but Plaintiff does not state what the legal effect of the renewal was. (FAC, ¶¶ 7-20.) For example, the prior two renewals took the lease to November 30, 2023, and November 30, 2024, respectively. However, there are no similar essential terms alleged by Plaintiff regarding the contract at issue. Plaintiff asserts that he paid the “Annual Minimum Rent” which would imply that the renewal term was for one year, but again, Plaintiff does not plead any facts for this and “facts not alleged are presumed not to exist.” (*Kramer v. Intuit, Inc.* (2004) 121 Cal.App.4th 574, 578.) The Court sustains Defendant’s demurrer to Plaintiff’s first cause of action for breach of contract for not pleading the legal effect, quoting the essential terms, or attaching a copy of the contract to the FAC.

Second Cause of Action - Fraud

Defendant argues that Plaintiff’s fraud claim fails because it is not pled with the requisite specificity. (Demurrer MPA, p. 7.) Defendant argues that Plaintiff’s references to “Defendant” throughout the complaint is ambiguous because Defendant is not the original landlord. (*Ibid.*) Another position Defendant takes is that it is improper that “[t]he FAC fails to allege exactly what was said” by Veronica Prather. (*Ibid.*) Plaintiff argues that there is only one defendant, so it is not sure what Plaintiff is confused about. (Opposition, p. 4.) In response to the argument that the complaint does not allege

what Veronica Prather said, Plaintiff argues that “[t]he FAC is clear that Defendant made representations that to renew, Plaintiff had to accept some conditions, which were accepted.” (*Ibid.*) In the reply, Defendant points out that Plaintiff does not allege knowledge of falsity and that there is a difference between alleging the basic topic of what Veronica Prather stated versus what exactly she actually said, and that Plaintiff’s allegations are insufficient. (Reply, pp. 3-4.)

“The elements of fraud are ‘ (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or “scienter”); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” ’ ” (*Charnay v. Cobert* (2006) 145 Cal.App.4th 170, 184.) Further, fraud must be pled with particularity. (*Hills Transportation Co. v. Southwest Forest Ind., Inc.* (1968) 266 Cal.App.2d 702, 707.) With regard to fraud claims, pleadings must allege facts as to “how, when, where, to whom, and by what means the representations were tendered.” (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) “The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.” (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.)

The Court does not find the FAC’s references to “Defendant” ambiguous in that Defendant is identified in the caption by Plaintiff as “Ramanujan Group LLC as successor in interest to Blackhawk Centralcal LLC.” (FAC, p. 1.) Further, the original landlord is *specifically defined* by Plaintiff as “BLACKHAWK.” (First Amended Complaint, ¶ 2.) There is no unacceptable ambiguity with how Plaintiff refers to the parties because when Plaintiff refers to Defendant, there is no reason to think Plaintiff is referring to BLACKHAWK, as that party is separately defined.

However, the Court agrees with Defendant that the FAC fails to allege what exactly was said that was false. The law requires a plaintiff asserting fraud to allege what was said or written. (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157 [“The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, *what they said or wrote*, and when it was said or written.”] italics added.) Here, Plaintiff does not allege what Veronica Prather said or wrote by the allegation that she “stated some conditions Defendant wanted.” (FAC, ¶ 24.) Fraud must be pleaded with specificity and what was said or written that is alleged to be fraudulent must be alleged. (*Tarmann v. State Farm Mut. Auto. Ins. Co.*, *supra*, 2 Cal.App.4th at 157.)

The Court also agrees that the FAC fails to allege knowledge of falsity, but Defendant did not argue this in the moving papers, which means that Plaintiff did not have a chance to respond. Thus, the Court will not sustain the demurrer on this basis. (*Magic Kitchen LLC v. Good Things Intern. Ltd.* (2007) 153 Cal.App.4th 1144, 1161 [“It is elementary that points raised for the first time in a reply brief are not considered by the court.”].)

Nonetheless, the Court sustains Defendant’s demurrer to Plaintiff’s second cause of action for fraud, with leave to amend, for failing to plead with specificity what Defendant said or wrote, that is basis of the allegedly fraudulent representation.

Third Cause of Action – Detrimental Reliance

Defendant argues that this claim is not a standalone cause of action and that this claim fails because “Defendant cannot have simultaneously tried to induce Plaintiff to stay and leave.” (Demurrer MPA, p. 7.) Plaintiff argues that “Defendant’s demurrer to the detrimental reliance cause of action is based on the same arguments as its demurrer to the fraud cause of action. Therefore, it should also be denied.” (Opposition, p. 5.) In the Reply, Defendant argues that Plaintiff’s argument is insufficient and contains only legal conclusions. (Reply, p. 4.)

Defendant’s argument that the Court should sustain the demurrer to this cause of action because Defendant cannot have simultaneously tried to induce Plaintiff to stay and leave is not persuasive. Parties are allowed to plead in the alternative. (*Adams v. Paul* (1995) 11 Cal.4th 583, 593 [“a party may plead in the alternative and may make inconsistent allegations.”].)

However, the Court concludes that that “detrimental reliance” does not appear to be a standalone cause of action. (See generally, California Causes of Action §§ 1-1:00 – 63:50.) Detrimental reliance is an element for fraud, promissory estoppel, and equitable estoppel. The Court suspects that Plaintiff is seeking to assert a promissory estoppel or unjust enrichment claim, but it is not clear and Plaintiff’s argument in the Opposition does not provide clarification. The Court sustains Defendant’s demurrer to Plaintiff’s third cause of action for detrimental reliance, with leave to amend.

Ruling

For the reasons discussed above, the Court **SUSTAINS** Defendant’s demurrer to the first (breach of contract), second (fraud), and third (detrimental reliance) causes of action, with leave to amend. Plaintiff may file and serve a second amended complaint within 20 days of notice of entry of this order. (Code Civ. Proc., § 472b; California Rules of Court, rule 3.1320(g).)

10. 9:00 AM CASE NUMBER: C25-00261

CASE NAME: KIKI BROWS VS. RAMANUJAN GROUP LLC

***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF’S 1ST AMENDED COMPLAINT
MOTION FILED TO/FOR**

FILED BY:

TENTATIVE RULING:

Before the Court is a motion to strike filed by defendant Ramanujan Group LLC, as successor in interest to Blackhawk Centralcal LLC (“Defendant”), which seeks to strike a request for punitive damages and a request for attorney fees from the prayer for relief of the first amended complaint (“FAC”) filed by plaintiff Kiki Brows (“Plaintiff”).

For the reasons set forth below, the Court **GRANTS** Defendant’s motion to strike as to the punitive damages allegation, with leave to amend, and **DENIES** the motion to strike as to the attorneys’ fees allegation. Plaintiff may file and serve a second amended complaint within 20 days of notice of entry of this order.